EVEN HAEZER: HILCHOT GITTIN - DAYANUT SHIURIM

# Which River Goes in the Get?

Even HaEzer, Gittin 128:4-7, 129:1

**Sefer:** Shulchan Aruch, Even HaEzer, Hilchot Gittin **Siman:** 128, Seifim 4-7 (the river and the other waters of the city), with the opening of Siman 129 (Seifim 11 and 1) **Shiur:** A Dayanut shiur by Dayan Daniel Kada, Wednesday 17 November 2021

*These notes are based on an automatic transcript of the recording.*

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## Where We Are

Siman 128 deals with the place (*makom*) written in the get: the town where the get is written and signed, the place of the husband and the wife, and the custom of identifying the town by the river it stands on. The previous shiur covered the place of writing and signing, and the places of the husband and wife. This shiur picks up with the river and the other waters of the town, and then, with the time that was left, opens Siman 129, the siman of the names.

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## Part 1: Writing the River Is Only a Minhag (Seif 4)

The formula in the get is that the town is **"דיתבא על נהר פלוני"**, the city that sits on such-and-such a river. The first and most important point is that this is **not required by the Gemara**.

- In the Gemara, Nehardea had rivers, and yet the get only wrote "Nehardea", without the river.
- **All the Rishonim** therefore agree that writing the river is not required *min hadin*. It became customary to do so.
- It is **a minhag**, and it is not recorded in the Rambam at all. The **Rosh**, the **Ran** and others bring the custom of writing the river.

So **if the river was left out entirely, the get is kasher**, as the Rambam implies. The **Seder HaGet** goes further: even *lechatchila*, if the get has already been written without the river, it may be given. "It's important to know: if you forgot the river," you can still give that get.

### The Get Pashut's two exceptions

The **Pitchei Teshuva** brings the **Get Pashut**, who says there are two cases where one might, *min hadin*, have to write the river:

1. **When there is another city with the same name.** The classic example is **London**: there is London in England and London in Ontario, Canada. The river then distinguishes them.
2. **When every get written in that place has always included the river.** If every get in London says "London, which sits on the river Thames," and suddenly a get appears that says

"London" without the Thames, people may think it is a different London. Where writing the river has become firmly established, it has "almost become part of the name of the city."

The Rabbi observed that **both of these apply to London**, so there is room to say that in London one does, *min hadin*, need to write the river. **Even so, the Get Pashut still says one can be lenient**: if a get was given in such a place without the river, *bimkom igun* (where she would otherwise be left unable to remarry), she may remarry with that get.

### Two smaller points

- **The river is written once.** The Pitchei Teshuva brings from the Get Pashut that one does not repeat the river every time the town is mentioned. It is written at the beginning, and every later mention of the place relies on that first reference.
- **Two rivers: "נהר פלוני ונהר פלוני".** The Shulchan Aruch writes *nahar ploni uploni*, which implies writing "the river Thames and X" with the word "river" only once. **All the Acharonim** say one should write the word *nahar* before **each** river: *nahar ploni ve-nahar ploni*. Otherwise it implies one river with two names, rather than two separate rivers. One should also keep the same order consistently, and avoid changes in the *seder*.

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## Part 2: Changing the Name of the River

We have learned that leaving the river out is fine. What if the sofer **wrote the wrong name of the river**?

The **Beit Yosef** brings two opinions:

| Opinion | Ruling | Reasoning |
|---|---|---|
| **Maharil** | Kasher | Since the river did not need to be written at all, an error in it does not matter |
| **Maharik** | *Yesh poslin* (some invalidate) | Even though it did not need to be written, once it was written and changed, it becomes a change in the get |

### An apparent contradiction in the Rema

The Rema writes clearly that if the river was **not written at all, or was changed**, the get is **kasher**, like the Maharil. But a line later he says that if one wrote the name of a river that is **outside the *techum*** of the city, *yesh poslin*. "But you just said a line ago that if you changed it, it's kasher." How do we reconcile this?

**The Beit Shmuel's answer.** Simply changing the river's name is fine, as the Rema rules. Writing a river outside the techum is different. That river no longer belongs to the town at all, so it is as if one has **written a different city**. A mistaken name of the right river is just a mistake. A correct name of a river that has nothing to do with the town "is even worse, because then it's implying it's a different city." The Rabbi's example: writing "London, which sits on the river Bern" gives the impression that this is not the London of England.

**The Get Pashut's answer** (brought in the Pitchei Teshuva) is much simpler. "Kasher" and "yesh poslin" in the Rema are **the same two opinions the Rema brought in Seif 2** about changing

the name of the place. There the Rema rules that *bimkom dechak* one can be lenient. The same applies here: **even a real change**, even one that makes it look like a different town, is **kasher bediavad and bimkom dechak**, because the river did not need to be written in the first place.

So: - **Beit Shmuel:** distinguishes between a mistake in the river's name (kasher) and naming a river outside the town (which implies a different town, and is a problem). - **Get Pashut:** there is a real machloket, mirroring Seif 2, and the final ruling there, kasher *bimkom dechak*, applies here as well.

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## Part 3: Which Rivers Count? Outside the Techum

The Rabbi mentioned that when he was preparing for his own exam on this section, he went through old Rabbanut questions, and this was one of the questions on a Rav Ir exam: **if the river is outside the techum, or outside the city, do you write it?**

| View | Ruling |
|---|---|
| **First opinion** | As long as the city draws from the river (water, washing clothes and so on), you write it |
| **Rashba** | Only if it is **within the techum**. Outside the techum you do not write it. If you did write it, the get is **kasher bediavad only if the river is visible from the city** |

**The Rema rules like the Rashba.** In practice:

1. **Outside the techum:** do not write it. If it was written, it is kasher bediavad only if it can be seen from the city.
2. **Within the techum but outside the *ibbur* (the built-up area) of the town:** write it only if the town is supplied from it (*mistapek mimenu*): water, bathing (*rechitza*), laundry (*kibbus*). If it is within the techum but not really used, do not write it.
3. **Within the town itself, where people actually live:** write it. The condition of use only applies to the middle band, in the techum but outside the ibbur.

### "Adding things on makes things more confusing"

The Rabbi added a personal observation. This is another example of how halacha evolves, and how "sometimes when you add things on, they make things more confusing." As he had said last time about kiddushin, "it's better if you don't say anything." Those who began writing the river surely did so for the right reasons. But as time goes on we arrive at people making mistakes in rivers, or not knowing which river to write.

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## Part 4: Practice in Perth and Elsewhere

One of the students on the call, from the Beth Din in Perth, had sent the Rabbi the text used there.

- **The Perth get** writes the city as sitting on the **sea-coast** (*kef yama*) and on the **Swan River**, with the sea first and then the river. Since the sofer there does all of them in the same

order, it makes no difference which comes first.

- **No place for the wife** appeared on that get. The Rabbi pointed out that this is because it was a *get shlichut* (sent by an agent), as discussed the previous week.
- **City limits.** The real difficulty in a place like Perth is where the city ends: Fremantle, or further south. "How far until you're considered out of Perth?"
- **The Canning River.** A student asked whether the Canning River should be written too. Checking on a map, they found that it is an offshoot of the Swan. That settles it: the Rema rules that when two rivers come together, **you write only the main one**. The Perth community, about 130 years old, has never written it.
- **Yerushalayim.** A student mentioned that for Yerushalayim, *mei hashiloach* (the waters of the Shiloach) is written. This comes from the Get Pashut and is not in the Shulchan Aruch or Rema. A student noted from another shiur that with smaller lakes and seas that are no longer noticeable features of the town, there is a tendency to leave them out.

The Rabbi explained why this was once so important: "in the olden days, you need it." A town without a river was hard to live in, so the river was central to the town's identity.

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## Part 5: The Sea, Springs, Wells and Pools

The Rabbi distinguished between kinds of water:

- A **bor** is like a cistern, collected rainwater.
- A **be'er** or **ma'ayan** is a spring, where water flows.

The rulings:

- **The sea (*kef yama*)** is significant, so it is written alongside the river.
- **Springs and wells (*be'erot*, *ma'ayanot*)**: the Rema says you do write them, and the Seder HaGet says this is the minhag. But **where there is a river**, don't bother writing the springs and fountains: just write the river. They are offshoots, not significant enough to sit beside a river.
- If one did write a spring where it should not have been written, the Pitchei Teshuva brings the Get Pashut that one should not give the get with it lechatchila, but if it was given it is kasher.
- **Cisterns and pools (*borot*, *agamim*)** are not written at all. They change too often. Wells are dug and then filled in again, as in Parashat Toldot, read two weeks before, with all the re-digging of Yitzchak's wells.

### The rule for doubts

When two rivers meet and one loses its name, or whenever there is any doubt whether something is an offshoot or part of the same river, the principle is:

**It is always better to have a doubt from leaving something out than a doubt whether you made a mistake.**

"Whenever you've got a doubt, leave it out. Just write the main one."

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## Part 6: Rivers That Dry Up or Freeze

The Pitchei Teshuva brings the **Mishpetei Shmuel**: if a river **sometimes dries up**, go after the majority. If it has water most of the time, it has the status of a river and you write it. If most of the time it is dry, you don't.

The **Get Pashut** qualifies this: going after the majority only applies **when you write the get at a time when there is water** in the river. If the river is dry for two months a year and the get is written during those two months, you do not write it.

### Frozen rivers

**Rav Moshe Feinstein** discusses rivers that do not dry up but **freeze in winter**, like the Hudson River in New York, which can freeze over for months.

- A frozen river **loses the name *nahar* only when people actually walk across it** and use it as a road.
- If, even when frozen, people still cross by bridges and do not go over the ice itself, it **keeps the name *nahar*** and is written.
- He adds that even though today **no one draws water or washes clothes** in the Hudson, it is still written, because "it's still a kind of ID."

The Rabbi pointed out how the river's role has changed: from the main resource of the town, where people got their water and their needs, to a kind of identifying mark.

A student asked a sharp question: **if the river is now only an ID, why should it matter whether it is dry or frozen?** It is still called the Hudson River. "That's a good question." The Rabbi's response was that if people were walking over it for three or four months a year, it is not clear it would still carry the name "river" in that period. He left it to check whether Rav Moshe addresses the point.

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## Part 7: A Minhag That Went Too Far

The Rabbi ended Siman 128 with what he called "a huge chumra" recorded in the **Darkei Moshe**: a minhag that a get should **only be written in a place with two rivers**.

- The **Noda BiYehuda** takes this on and says you do not need two rivers: a *nahar* and a *ma'ayan* satisfy the minhag.
- But everyone rejects it. The **Beit Meir** says he saw many gittin written in cities with only one river, and if one always had to travel to a city with two rivers, it would be ridiculous.
- We **do not hold of this at all**.

It is interesting, he said, that the Darkei Moshe recorded such a minhag at all, "which shows you to what extent these things can end up going."

### Summary of Siman 128 as the Rabbi gave it

The siman covered the place of signing by the edim, the husband and the wife; then the river; changes in the river; and the other waters that supply the city. In short: write the sea, write wells and springs (unless there is a river), but **not cisterns and pools**, because they are too transient.

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## Part 8: Opening Siman 129, the Siman of Names

Asked about Siman 129, the Rabbi warned the class about what makes it hard.

"The problem with 129 is that there's so little Gemara on it. And when you don't have a lot of Gemara, you end up with lots of speculations from Rishonim."

There are essentially **two or three Gemarot** for a siman of some thirty seifim. Towards the end it is all small seifim with very specific scenarios. The siman is so intertwined that it needs to be **learned once through quickly and then gone over again**. There are endless permutations and variables:

- What is the main name and what is the secondary (*tafel*) name?
- He is called up to the Torah by one name, his friends call him another, he signs a third.
- His name was changed because of illness.
- He has an English or secular name.

So the key is to **get the *klalim*** (principles), mainly in Seifim 1 and 2, and not get bogged down in the details.

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## Part 9: A Get With No Names (Seif 11)

Before Seif 1, the Rabbi jumped ahead to Seif 11, "because it's a good introduction to the siman" and shows how central the names are.

The Shulchan Aruch rules that a get without the names of the husband and wife is **"פסול והבנים ממזרים"**, invalid, and children from a subsequent marriage are mamzerim. The wording is strange: *pasul* usually means invalid *derabbanan*, while *mamzerim* implies the get is void *min haTorah*. Most likely, the Rabbi said, "pasul" here is not precise and means *batel*, void.

### The source

The Gemara in Gittin tells of a man who handed his wife a Sefer Torah in front of *edei mesirah* (witnesses to the delivery) and said, "Here is your get," on the basis that everything is written in the Torah. The Gemara rejects this. All the Rishonim learn from here that the get must contain **his name and her name** (*shemo u-shemah*), or it is not a get.

### Why are the names essential?

| Rishon | Reason |
|---|---|
| **Ramban** | The Torah calls the get a *sefer keritut*, which implies a *sipur devarim*, a narrative. "If you have a story without the name of Harry Potter, it's not going to be a story of Harry Potter." Without the names of the man and the woman there is no story, so there is no *sefer* |
| **Ohr Zarua** | Without the names, the get **cannot be *lishmah*** (written for this man and this woman). Even if the sofer had them in mind, if he did not write them it is not lishmah |

The Ramban also brings a view that the invalidity is **only *derabbanan***, and rejects it.

### Rabbeinu Yoel: a get without names is kasher

The **Mordechai** brings **Rabbeinu Yoel**, who holds that a get without names is **kasher**. How? Because, as we rule, *edei mesirah karti* (the get takes effect through the witnesses to its delivery), and those two edim see the man and see the woman. That identifies them.

"As you clearly see, everyone disagreed."

- **The Beit Shmuel** suggests that the Shulchan Aruch wrote *pasul* because he was concerned for the view that it is only derabbanan, and that *banim mamzerim* means mamzerim derabbanan. The Rabbi called this "a huge *dochak*" (strained reading).
- **The Gra** completely rejects Rabbeinu Yoel: the get is void, and all his proofs are "nothing."
- **The Pitchei Teshuva** brings the **Get Pashut**, who says that since Rabbeinu Yoel exists, she is a **safek megureshet** (doubtfully divorced). The Gra is not interested, but the Pitchei Teshuva seems to leave it there.

The point for the whole siman: according to all the Rishonim, the names are essential, because without them you lose either the *sipur devarim* or the *lishmah*.

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## Part 10: "וכל שום שיש לו" (Seif 1)

"This is really the core of the siman." The Shulchan Aruch writes that one writes the man's name and the woman's name, and the Gemara (Gittin 34b) says that Rabban Gamliel instituted writing *"ploni ve-chol shum she-yesh lo"*, "so-and-so, and any name he has." What does that mean?

| Shita | Meaning of *vechol shum she-yesh lo* |
|---|---|
| **Bahag, Rambam** | Literally write the words. Write the main name and then "*vechol shum she-yesh lo*", which covers every other name |
| **Rabbeinu Tam** | It does not mean writing those words. It means **spelling out each name explicitly**. His proof: later in the same Gemara, when a get is sent between two places where he has a different name in each, the names must be written out |
| **Ra'avad, and others** | A middle view: if the get is being sent from one place to another, there is more chance of confusion, so write the names explicitly. In the same place, *vechol shum* suffices |

The Rabbi's own example: his formal name is **Daniel**. His passport says Daniel, he is called up to the Torah as Daniel, but most people know him as **Danny**. According to the Bahag and Rambam one writes "Daniel *vechol shum she-yesh lo*", which includes Danny and anything else. According to Rabbeinu Tam one writes "Daniel *de-mitkarei* Danny" (Daniel who is called Danny).

### The Beit Yosef and the Shulchan Aruch

After bringing all of this, the **Beit Yosef** says it is good to write **both**: the *de-mitkarei* and *vechol shum*. "What's there to lose? You've got the best of both worlds."

Yet in Seif 1 the Shulchan Aruch writes only *vechol shum*, and never mentions *de-mitkarei*, while throughout the rest of the siman he does write *de-mitkarei*. The Rabbi said he never

found a real answer. His suggestion: in Seif 1, at the head of the siman, the Shulchan Aruch states the **essential law**, like the Rambam and Bahag, that *vechol shum* alone suffices. Elsewhere he reflects the advice of the Beit Yosef to write the *de-mitkarei* as well.

### The Rema and the minhag today

The Rema follows **Rabbeinu Tam** outright: there is no need to write *vechol shum*; if he has two names, write "*ploni de-mitkarei ploni*", "and so is the custom."

| Community | Practice |
|---|---|
| **Sephardim everywhere** | Both: *de-mitkarei* and *vechol shum* |
| **Ashkenazim in Israel** | Both, because of the Beit Yosef. Gittin in Israel are uniform in this |
| **Ashkenazim in chutz la'aretz** | Only *de-mitkarei*, without *vechol shum*. The Perth students confirmed this is what they do |

### Is one of them enough bediavad?

A student suggested that strictly speaking, either one alone should be good for everyone. The Rabbi pointed to the **Taz**:

- The other Rishonim would agree that if one wrote *de-mitkarei* without *vechol shum*, it is fine.
- But **Rabbeinu Tam is the more insistent one**. If one wrote only *vechol shum*, then according to the Rema, if another get can easily be written, one should write another rather than rely on it.
- Therefore, says the Taz, if a get is written in one place (which follows the Shulchan Aruch) and sent to another (which follows the Rema), **always do like the Rema** and write the *de-mitkarei*.

In practice the question rarely arises today, because even Sephardim always write the *de-mitkarei*. But if it were missing, *vechol shum* alone would be fine for Sephardim.

A short later seif in the siman, which gives the standard text written in the get, says the same thing again: the Shulchan Aruch writes just *vechol shum*, and the Rema repeats the same machloket.

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## Part 11: Ikar and Tafel, and Must Both Be Written?

The next major idea is the **main name** (*ikar*) and the **secondary name** (*tafel*). Everyone agrees that the ikar comes first. "Like in Hilchot Berachot, we all agree you make the beracha on the ikar. The question is, what's the ikar and what's the tafel?"

### Who defines the ikar?

Back to Daniel and Danny. A student said the point is to identify the person to most people, so it is the name he is most commonly known by. But what does "commonly known" mean?

- Many would argue that **how you are called up to the Torah** is how you are publicly known, since the shul is the most public place. So too the passport and how one signs.

- Others would say it is the name people actually use when they speak about you, which for the Rabbi is Danny.

A student recalled a get done in Perth for a woman who attended a Reform synagogue where she was called up to the Torah by a particular name. The Dayan included that name because people knew her by it. "Very good, I like that."

The Rabbi asked the class to keep this question in mind throughout: whenever the siman uses *ikar* and *tafel*, **who actually defines what the ikar is?**

### Do you have to write the tafel at all?

| Shita | Ruling |
|---|---|
| **Tosafot** (Gittin 34b) | Lechatchila write both. Bediavad one name is fine **if the divorce is in the same town**. If the get is sent to another place, *min hadin* both names are needed, and if only one was written, a new get must be written |
| **Rashba** | **Even one name suffices**, ikar or tafel, either is acceptable |
| **Rambam** | Does not distinguish between one place and two. **Always write both names** |

The Rashba's proof is from the Mishna on *hanicha* (where the get is placed) and how a person is divorced. The Gemara says write "*Miriam de-mitkarya Sarah*" and not the reverse. Is that not a proof that both names are needed? The Rashba answers: no, it only says that *if* you write both, don't put them the wrong way round, with the tafel first.

"I'm telling you, it's really important to get these shitot clear at the beginning, because they'll resurface all the time."

**The ikar of the halacha** is like the majority of Rishonim: **lechatchila always write both names**, either through *vechol shum* or through *de-mitkarei*. Only the Rashba would allow writing a single name without anything else.

The Rabbi had to leave early. He said this is "a really important seif," and that next session should focus on reviewing it, since everything that follows ties in with it.

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## Summary of the Halachot

1. **Writing the river is only a minhag.** Without it the get is kasher, and per the Seder HaGet may even be given lechatchila. The Get Pashut suggests it may be needed where another city has the same name, or where every previous get included it (both true of London), but even then one is lenient *bimkom igun*.
2. **Write the river once**, and with two rivers write *nahar ploni ve-nahar ploni*.
3. **A wrong river name** is kasher (Maharil, Rema). Writing a river outside the techum is a problem: for the Beit Shmuel because it implies a different city; for the Get Pashut it is the same machloket as Seif 2, kasher *bimkom dechak*.
4. **Outside the techum**, don't write the river (Rashba, Rema); bediavad kasher only if visible from the city. Within the techum but outside the town, write it only if the town uses it.

5. **Where rivers merge, write only the main one.** Write the sea; write springs and wells unless there is a river; never write cisterns and pools. When in doubt, leave it out.
6. **A river that dries up** is written if it usually has water and has water when the get is written. **A frozen river** keeps its name unless people walk across it (Rav Moshe Feinstein).
7. **The Darkei Moshe's "two rivers" minhag** is not followed.
8. **A get with no names** is invalid and children of a later marriage are mamzerim (Ramban: no *sipur*; Ohr Zarua: no *lishmah*). Rabbeinu Yoel's lone view leads the Get Pashut to treat her as a *safek megureshet*.
9. **"Vechol shum she-yesh lo":** Rambam and Bahag write the words; Rabbeinu Tam spells out each name. Sephardim and Israeli gittin write both *de-mitkarei* and *vechol shum*; Ashkenazim in chutz la'aretz write only *de-mitkarei*. Between communities, follow the Rema (Taz).
10. **Ikar and tafel:** lechatchila always write both names, ikar first. Keep asking who defines the ikar.

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